

		Based on the foregoing, the Court DENIES Sun Mar's motion to quash the deposition of Mr. Oxford, and denies the requested protective order. <i>Plaintiffs to give notice.</i>
103	Berger vs. Mission Viejo Animal Services, 25-01502673	<i>Off-calendar.</i>
104	Hoshour vs. Montgomery, 24-01392447	Plaintiffs David Guy Hoshour and Wensun Chen seek an order compelling Defendant Annelise Montgomery to provide further responses to Requests for Admission, Set One, served on Defendant on October 11, 2025. Initially, this Motion was filed January 8, 2026 by Plaintiffs David Hoshour and Wensun Chen, who are in pro per. (ROA 65.) Notably, in support of the Motion is a declaration by "Mark J. Kizer" who is "assisting Plaintiffs DAVID GUY HOSHOUR and WENSUN CHEN in this matter." (Declaration of Kizer para.1.) While Mr. Kizer indicates he has "personal knowledge of the facts set forth herein and could competently testify thereto", he fails to indicate how, or whether he is an attorney. Where responses have been served but are deemed deficient by the requesting party (e.g., because of objections or evasive responses), that party may move for an order compelling a further response. [CCP § 2033.290.] Importantly, no further response can be ordered to an RFA that has been unqualifiedly denied, even if the facts involved are unquestionably true. "[A] court [cannot] force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions" by denying them. [<i>Holguin v. Sup.Ct. (Hoage)</i> (1972) 22 Cal.App.3d 812, 820.] Here, on October 11, 2025 Plaintiffs served RFAs, Set 1. (Decl. Kizer¶2.) Defendant did not serve responses until December 16, 2025